

		<i>U.S.A.</i>) (1989) 213 Cal.App.3d 1045, 1048; Cal. Prac. Guide, <i>Civil Procedure before trial</i> (Rutter) 6:644. Grounds for demurrer or motion to strike are premature. <i>Id.</i> After leave to amend is granted, the opposing party will have the opportunity to attack the validity of the amended pleading. <i>Id.</i> See <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 760 (“[W]e believe that the better course of action would have been to allow Atkinson to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”) (citing <i>Kittredge</i>). California courts generally allow great liberality, at all stages of the proceeding, in permitting the amendment of pleadings in order to resolve cases on their merits. <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461. This liberal policy applies only so long as there is no prejudice to the opposing party. <i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564. Denial of leave to amend is appropriate where inexcusable delay and probable prejudice to the opposing party are shown. This may happen where a proposed amendment opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. <i>Estate of Murphy v. Gulf Ins. Co.</i> (1978) 82 Cal.App.3d 304, 311. If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 490; <i>Melican v. Regents of Univ. of Calif.</i> (2007) 151 Cal.App.4th 168, 176; <i>Fisher v. Larsen</i> (1982) 138 Cal.App.3d 627, 649. <u>Discussion</u> This case began on December 1, 2025. Any delay by Plaintiff in alleging specific facts has been minimal. Nor has Defendant asserted prejudice from any delay. There is no trial date, and Defendant makes no claim that discovery will need to be redone. While Defendant objects that Plaintiff’s new physical injury claims are barred by workers’ compensation, that is only a portion of the SAC and can be addressed by demurrer to the SAC. Accordingly, Defendant’s demurrer is sustained and Plaintiff has leave to file her proposed SAC.
8.	2025-1481901 Global Axxis, LLC vs. Foldum Corporation	<i>The Court is tentatively inclined to sustain Defendants Foldum Corporation, Travis Zieman, James A. Shortill, Robert Reynolds, Aaron Zieman, and Niah Zieman’s demurrer to Plaintiff Global Axxis, LLC’s First Amended Complaint as to the second, third, and seventh causes of action, with leave to amend within 20 days, and</i>

		<i>overrule it as to the first, fourth, fifth, sixth, eighth, and ninth causes of action. Before ruling, the Court has several questions for counsel. Accordingly, no tentative ruling on the motion to strike is issued at this time.</i>
9.	2026-1552680 Lee Mitchell vs. Select Portfolio Servicing Inc.	<i>No tentative ruling is issued. The Court must address a service issue concerning Code of Civil Procedure section 1013a and California Rules of Court, rule 2.251(c)(3)(B).</i>